

# Concentration Without Reception: How Blank Resignations Reproduce the *Suma del Poder Público* That Article 29 of the Argentine Constitution Cannot Reach

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## Abstract

Constitutional prohibitions on the personal concentration of state power are written in the grammar of reception: a legislature concedes, an executive receives, a constitution voids the grant. Argentina's Article 29 and Spain's Article 67.2 both follow this pattern, and the jurisprudential gloss the Spanish Constitutional Court added in STC 5/1983 does too, protecting an elected official's tenure against a party's will without addressing what happens when no grant occurs at all.

This paper proposes concentration by subtraction as the structural mirror image of the classical *suma del poder público*: a mechanism by which one actor, holding no office larger than a single legislative seat, conditions the tenure of every other formal power-holder around it, without ever being the object of a constitutional concession. The paper traces this mechanism through a nineteen-year case, the government of Misiones province\*, Argentina (2007-2026), in which Carlos Rovira, defeated in a 2006 plebiscite that would have let him seek a third consecutive term as governor, presided the provincial Legislature for sixteen years and conditioned the tenure of four subsequent governors.

Using Extended Phenotype Theory and evolutionary game theory, the paper models the arrangement as a forced pooling equilibrium rather than a genuine evolutionarily stable strategy, and traces its 2026 collapse to the entry of a second patron, the sitting governor, rather than to any legislative or judicial correction.

The paper argues that neither Article 29 nor Article 67.2, nor the doctrine of STC 5/1983, reaches this mechanism, because all three regulate what an office-holder receives rather than what a non-office-holder can subtract from others, and proposes a function-defined nullity rule, modeled on the substance-over-form technique of Argentina's own *principio de la realidad económica* (Ley 11.683, art. 2), designed to close that gap without displacing ordinary party discipline.

**Keywords:** extended phenotype theory, evolutionary game theory, imperative mandate, legislative capture, constitutional design, Article 29, Article 22, blank resignation, Misiones

**JEL codes:** K10, K40, D72, D02, P16

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## 1. Introduction

On July 30, 2026, a provincial legislator in Misiones, Argentina, told a local radio station something no member of his own governing bloc had said in public for nineteen years. "The

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\* Status: working paper, version 0.1. This is a companion piece to "The Captured Renewer Problem" (Lerer, 2026, Zenodo, DOI 10.5281/zenodo.21459029), sharing its theoretical toolkit but addressing a structurally distinct failure mode. This draft is not citation-final. The chronology of the Misiones case in Section 4 draws principally on contemporaneous news reporting rather than official legislative or judicial records; Appendix A identifies which specific claims rest on journalistic sourcing and should be checked against primary institutional records, the *Cámara de Representantes de Misiones*' own session records, the *Tribunal Electoral de Misiones*' 2006 plebiscite results, and the official text of the *Constitución de la Provincia de Misiones*, before this paper is treated as citation-final. The comparative scope is deliberately limited to Argentina and Spain; Section 8 identifies the multi-jurisdiction survey this paper does not attempt as a specific direction for future work.

era of imposition is over," Juan José Szychowski told Radio Up. "Now we are going to talk." By his own count, fifteen or sixteen of the twenty-one legislators originally elected under the banner of Carlos Rovira, the province's dominant political figure since 1999, no longer answered to him (Plan B Misiones, July 30, 2026).

Nothing in the text of Argentina's Constitution, or in the constitution of Misiones province, was violated to produce nineteen years of that obedience, and nothing in either text was violated when it broke. Rovira held no office larger than a seat in the provincial Legislature. He was never the beneficiary of any constitutional grant of extraordinary power of the kind Article 29 of the National Constitution was written to prevent. The mechanism Szychowski described breaking, a private instrument functionally equivalent to an imperative mandate, an anticipated or blank resignation held over an elected official by a political patron, operates entirely outside the grammar that Article 29, and its Spanish analogue in Article 67.2 CE, use to define the evil each was designed to prevent: *concesión*, *otorgamiento*, grant, reception. No one gave Rovira anything. He made everyone else's tenure conditional on his goodwill, one legislator, and eventually one governor, at a time.

Three years earlier, a different Argentine court had confronted a structurally adjacent but doctrinally distinct problem. In June 2023, the Supreme Court of Argentina barred Governor Sergio Uñac of San Juan province from seeking what would have amounted to a fourth consecutive term, alternating between the offices of governor and vice-governor, holding that the arrangement violated the "pauta republicana" of Article 5 of the National Constitution even though nothing in San Juan's own constitutional text explicitly forbade it (CSJN, *Evolución Liberal y otro c/ San Juan, Provincia de s/ acción declarativa de certeza*, CSJ 561/2023, June 1, 2023). Uñac's case involved reception in its clearest form: an office-holder seeking, through the ordinary electoral process, to keep receiving the same set of powers indefinitely. Rovira's case involves no reception at all. The two cases share a methodological premise worth stating at the outset: an office-holder wishing to defeat a republican-form guarantee under the Argentine Constitution does not need a textual gap in the provincial constitution to exploit it; a functional reading of Article 5 closed a gap the San Juan text left open. This paper asks whether the same functional method can close the gap Article 29 and Article 67.2 leave open, or whether concentration by subtraction requires a rule that neither precedent, nor either constitution's current text, actually supplies. Section 5 argues for the second answer, and Section 6 proposes the rule.

## **2. Theoretical Framework**

*Epistemological positioning.* This paper belongs to the same research programme (Lakatos, 1978) as its companion piece, applying Generalized Darwinism and Extended Phenotype Theory to legal and institutional systems. Popper (1959) supplies the demarcation criterion used throughout: the claim that forced pooling equilibria sustained by a private, unrecorded instrument are systematically less stable than genuine evolutionarily stable strategies is falsifiable, and Section 8 specifies the conditions under which it would fail. Hull (1988)

supplies the selection-theoretic vocabulary: legal rules, and the private arrangements that substitute for them, are treated as replicators whose persistence depends on transmission, compliance, and enforcement rather than on formal validity or textual pedigree.

### ***2.1 The grammar of reception***

Article 29 of the Argentine Constitution declares void, and its authors and consenters traitors to the fatherland, any grant by Congress to the Executive, or by a provincial Legislature to a governor, of "facultades extraordinarias" or "la suma del poder público." Every operative verb describes a transfer: Congress "no puede conceder"; a Legislature must not "otorgarles." Article 67.2 of the Spanish Constitution states the prohibition more economically but in the same grammatical mood: members of the Cortes Generales "no estarán ligados por mandato imperativo," a formulation that presupposes the thing prohibited is a tie, a ligature, something that could in principle be imposed on the representative from outside.

The jurisprudential gloss Spain added in 1983 follows the same pattern by a different route. In STC 5/1983, the Constitutional Court annulled a municipal council's decision to remove a city councilman, Miguel Ángel Bellido del Pino, from his seat after his expulsion from the Partido Socialista Obrero Español, holding, over the dissent of two of the nine sitting magistrates, that "the cessation from the representative public office to which one accedes by virtue of suffrage cannot depend on a will foreign to that of the electors, and eventually that of the elected" (STC 5/1983, Fundamento Jurídico 4, own translation). The Court grounded this holding not in Article 67.2, which applies only to members of the Cortes Generales, but in Article 23 CE's more general right to access and remain in public office, and it explicitly declined to extend the same protection to the mayoralty in the same case, since a mayor in the Spanish municipal system is elected by the council rather than directly by citizens (STC 5/1983, FJ 5). Even at its broadest, the Spanish doctrine describes a right the representative holds against having something taken from him by an outside will. It does not contemplate the configuration in which no removal is ever attempted, because the threat of removal, held privately and never exercised, is doing all the constraining work.

### ***2.2 Concentration by subtraction***

Call the ordinary case concentration by accumulation: an office-holder receives, whether by formal grant or by the kind of unregulated displacement the companion paper documents in Argentina's own delegated-legislation and necessity-and-urgency-decree practice, powers greater than the office's own text confers. Every anti-concentration clause surveyed here, and every design proposed to repair one, including the tenure-contingent trigger in the companion paper, is built to interrupt this direction of flow.

This paper's claim is that the same substantive evil, one person's will substituting for the institutional multiplicity a republican constitution is designed to preserve, can be produced by the opposite direction of flow. Instead of one actor's formal powers increasing, every other actor's practical independence decreases, degree by degree, until the aggregate effect is

indistinguishable from a formal concession, except that no concession, no otorgamiento, ever took place. In the vocabulary this programme has used since 2025 (Dawkins, 1982), the genotype, the constitutional text defining the republican form of government, is unchanged. What has changed is the phenotype, the observed behavior of every office-holder within reach of the mechanism, and the environmental structure producing the change is not a rule anyone voted on; it is a private instrument, held outside the constitutional text entirely, that never has to be applied to do its work.

If  $n$  denotes the number of formally empowered offices within a political system, concentration by accumulation adds to the powers of one of those  $n$  office-holders. Concentration by subtraction instead removes the practical independence of  $n$  minus one of them, leaving the remaining office-holder, who need not occupy any office larger than the others, as the only node whose decisions are not conditional on someone else's goodwill. The arithmetic result, a single will controlling outcomes across the system, is the same. The operation producing it is the mirror image, and the reception-based grammar surveyed in Section 2.1 has no verb for it.

### ***2.3 Evolutionary stability and the two-principal defection game***

A strategy is evolutionarily stable (Maynard Smith, 1982; Maynard Smith and Price, 1973) if, given the payoffs available to all players, no individual player improves its position by deviating unilaterally. Applied to a legislature subject to concentration by subtraction, the relevant question is whether an individual legislator's compliance with the patron's will is a strategy that resists invasion by a mutant defector, or merely an equilibrium forced by the patron's unilateral control of the cost of defection.

The distinction predicts different collapse dynamics. A genuine ESS resists invasion regardless of what any single other actor does, because the payoff structure itself makes defection unprofitable. A forced pooling equilibrium depends entirely on the patron retaining exclusive control of the punishment; if a second actor with comparable resources enters the system and offers legislators an alternative source of protection, the same legislators who complied for years should defect in a correlated wave, not because the underlying payoff structure changed, but because the patron's monopoly on the relevant currency, protection from removal, was broken.

Section 4 models the Misiones case as exactly this second configuration, a two-principal defection game in which the entering principal is not the state acting through courts or electoral authorities, but a rival power center commanding independent material resources. The prediction that follows, tested against the 2026 collapse documented in Section 4.3, is that the wave of defection should track the credibility of the rival principal's resources, not any change in the formal legal environment, since none occurred.

### **3. Doctrinal Anchors: Two Constitutions, Two Gaps**

#### ***3.1 Argentina: a structural prohibition without a text***

Unlike Spain, Argentina has no textual clause equivalent to Article 67.2 CE. Article 22 of the National Constitution states that the people neither deliberate nor govern except through their representatives, and criminalizes as sedition any armed force or assembly of persons that arrogates to itself the rights of the people. Article 1 establishes the "forma representativa republicana federal" as the nation's form of government. From these two provisions, read together, Argentine constitutional doctrine has reconstructed a prohibition on imperative mandate that Spain states directly: a representative's continuation in office cannot depend on the will of a party, a faction, or an individual, because that dependency converts the representative into a delegate answerable to someone other than the electorate the Constitution names as sovereign.

The absence of an explicit clause is not merely stylistic. Where a Spanish court applying Article 67.2, or the general doctrine of Article 23 CE, has a sentence it can cite directly, an Argentine court, or an Argentine litigant, confronting the same underlying practice has to argue a structural inference from Articles 1 and 22 each time the question arises. This is precisely the kind of gap through which a private instrument, never presented to any court and never appearing in any Boletín Oficial, can operate for nineteen years without generating the case that would test it.

#### ***3.2 Spain: a textual clause and a jurisprudential extension***

Two further points bear on this paper's argument beyond Section 2.1's summary of STC 5/1983's holding and its limits. First, the doctrine addressing municipal representatives (STC 5/1983) and the explicit clause addressing national legislators (Article 67.2 CE) are formally distinct routes to a substantively similar protection: Spain protects representative independence twice, once by direct text for the Cortes Generales, once by jurisprudential construction from Article 23 CE for local office, a redundancy Argentina's single structural prohibition does not share. Second, neither route has been tested, so far as this paper's research could establish, against the specific instrument of a predated or blank resignation held by a party or its leader over a candidate before that candidate takes office. Spanish commentary on transfuguismo discusses the practice and treats it as incompatible with the logic of STC 5/1983 by extension, but this paper found no Constitutional Court decision squarely deciding the question, and treats the extension, here as in the comparative literature, as a doctrinal construction rather than a settled holding (see Appendix A).

#### ***3.3 The methodological precedent: Evolución Liberal v. San Juan***

The Argentine Supreme Court's 2023 decision barring Sergio Uñac's fourth consecutive term in San Juan did not involve subtraction; Uñac sought to keep receiving the same set of powers by alternating between the governorship and the vice-governorship, a paradigmatic case of concentration by accumulation. Its relevance here is methodological rather than substantive.

The Court held, over the province's argument that its own constitutional text did not forbid the specific sequence of offices Uñac proposed, that the republican guideline enshrined in Article 5 of the National Constitution barred the arrangement regardless of the provincial text's silence, because permitting it would let a person exercise the same office for one, two, or three consecutive terms and immediately thereafter hold the other office in the pair, repeating the cycle indefinitely (CSJ 561/2023; see Appendix A on sourcing). Three of the Court's four sitting justices at the time joined or concurred in this reading, Rosatti and Maqueda jointly, Rosenkrantz separately; Lorenzetti did not vote, having not participated in the preceding precautionary measure.

The precedent this supplies is narrow but useful: Article 5 CN's republican guarantee is not confined to whatever a provincial constitution's text happens to say, and the Argentine Supreme Court has shown itself willing, at least once, to read the guarantee functionally, against what an arrangement produces rather than what it is formally labeled. Section 5 asks whether the same functional reading, applied to Article 22 rather than Article 5, and to subtraction rather than accumulation, would reach as far.

## **4. The Case: Misiones, 2007-2026**

### ***4.1 Design: the 2006 defeat and the retreat to the Legislature***

Carlos Rovira served two consecutive terms as governor of Misiones, from December 1999 to December 2007, after founding the Frente Renovador de la Concordia in 2003 following a break with the province's Peronist establishment. In 2006, roughly a year before his second term ended, Rovira put a provincial constitutional reform enabling indefinite gubernatorial reelection to a popular plebiscite. The reform lost by a wide margin; in Posadas, the province's capital and largest city, the "No" vote outpolled the "Sí" vote by more than two to one, 83,786 to 41,244, and the province's bishop at the time, Joaquín Piña, led the public campaign against the reform (La Nación, 2006).

Blocked from the executive branch, Rovira did not leave provincial politics. In December 2007, a fellow Frente Renovador figure, Maurice Closs, assumed the governorship, and Rovira assumed the presidency of the Cámara de Representantes, the province's forty-seat unicameral legislature, a position he held, with a change of officeholder at the end of 2023, for sixteen years (La Nación, 2023; Noticias Perfil, n.d.). Closs governed for two consecutive terms; Hugo Passalacqua and Oscar Herrera Ahuad each subsequently held the governorship before Passalacqua returned to it in December 2023 (La Nación, 2023). Every one of these governors, across nineteen years, governed a province whose unicameral Legislature was chaired, for most of that period, by a man who held no executive office at all.

### ***4.2 Operation: sixteen years, four governors***

The Constitution of Misiones province supplies at least one documented institutional lever available to a legislator in Rovira's position independent of any private instrument: Article 101,

inciso 6, requires a two-thirds vote of the Cámara's members present to authorize the executive to contract public debt or issue public funds, giving a legislator who commands a working majority of the chamber a formal check on a governor's borrowing capacity. This paper does not claim that Article 101 alone explains nineteen years of gubernatorial deference; it offers the provision as one documented, function-based instrument among what this paper's research could not exhaustively establish was a wider set of formal and informal levers, and flags the remainder for the kind of direct legislative-record verification specified in Appendix A. What the available reporting establishes without ambiguity is the outcome: four governors drawn from the same political space, over nineteen years, without a single documented instance of Rovira receiving, by concession or grant, any office or formal power greater than a seat among forty.

### ***4.3 Collapse: the second patron***

In May 2026, Rovira replaced the Frente Renovador de la Concordia's public branding with a new label, Encuentro Misionero, and, according to Infobae, lined up four candidates of his own choosing, the sitting vice-governor Lucas Romero Spinelli, the Legislature's president Sebastián Macías, the national deputy and former governor Oscar Herrera Ahuad, and the mayor of Posadas, for the 2027 gubernatorial succession, a slate that did not include the sitting governor, Hugo Passalacqua (Infobae, May 16, 2026). Passalacqua responded by formalizing an independent political space, Movimiento por lo que Viene, on July 11, 2026, drawing in mayors and, over the following weeks, a growing share of the legislative bloc that had until then answered to Rovira (Infobae, July 11, 2026), and began reassigning state assets and personnel previously aligned with Rovira's network later that month (Infobae, July 23, 2026).

On July 30, 2026, Szychowski's statement to Radio Up, that fifteen or sixteen of the original twenty-one legislators elected under the Renovación label had broken with Rovira, supplied the clearest public confirmation of the collapse (Plan B Misiones, July 30, 2026). Szychowski attributed the break to the rebranding itself: they had been left, in his words, without the political space in which they were elected. This paper reads that account as the presentable symptom rather than the operative cause. The rebranding coincided with, but did not by itself produce, the appearance of a second patron holding independent resources, the apparatus of the provincial executive branch itself, which Passalacqua had begun actively reorganizing that same month. The prediction stated in Section 2.3, that a wave of defection should track the credibility of a rival principal's resources rather than any change in the formal legal environment, is consistent with this sequence: no court, no legislative vote, and no constitutional amendment intervened between the arrangement's nineteenth year of stability and its collapse. A second patron did.

## **5. The Structural Gap**

Neither Article 29 nor Article 67.2 CE, nor STC 5/1983's extension of Article 23 CE, reaches the mechanism described in Section 4, for the reason given in Section 2.1: each regulates a

transfer, and no transfer occurred. A court asked to apply Article 29 to Rovira's nineteen years of legislative dominance would have to identify a *concesión* of facultades extraordinarias or la suma del poder público to a specific office, and none exists; Rovira's own formal powers, as a single legislator among forty, never changed. A court asked to apply Article 67.2 CE, or the doctrine of STC 5/1983, would face a different but equally fatal mismatch: both protect a representative's own tenure against an outside will, and no removal, actual or threatened in any documented instance, of any of Rovira's fellow legislators appears in the available record; the mechanism's entire force lay in a threat that never had to be exercised.

Article 5 CN's republican guarantee, read as the Argentine Supreme Court read it in *Evolución Liberal v. San Juan*, comes closer. The functional method that decision applied, asking whether an arrangement's practical effect defeats the republican form regardless of what the local text permits, does not on its face require that the defeat take the shape of a formal reception. Section 3.1's structural reading of Articles 1 and 22 CN could, in principle, be extended the same way San Juan extended Article 5: a legislature is not representative in the sense Article 22 requires if a majority of its members hold their seats conditionally on a private patron's goodwill, whether or not any formal power was ever conceded to that patron. This paper argues the extension is available, consistent with the Court's own stated method in *San Juan*, but has never been tested, and treats it as a proposition worth stating rather than a holding this paper can cite (see Appendix A). Absent a case squarely presenting the question, closing the gap requires a rule that does not wait for one.

## 6. A Function-Defined Design

### 6.1 *The mechanism*

The companion paper's Article 29 bis closes the reception-side gap by attaching an automatic, non-discretionary, tenure-contingent consequence to the exercise of extraordinary power, defined by substance rather than by named instrument (Lerer, 2026, Section 6.1). The gap identified here requires a companion rule addressed to the opposite side of the mechanism, addressed not to what an office-holder receives but to what a non-office-holder can hold over others. This paper proposes the following:

*Article 22 bis (proposed). Any instrument, whatever its denomination or the identity of the person in whose custody it is held, that subordinates access to an elective public office, or continuation in its exercise, to the will of a third party other than the electorate or the office-holder personally, is void of absolute nullity. This nullity reaches, without limitation, anticipated, blank, or undated resignations, and any other commitment, whatever its form, that produces the same effect in practice. The nullity operates by force of law and may be invoked by the office-holder, by any elector of the relevant district, or by the competent electoral authority acting on its own initiative.*

*For purposes of determining whether a law, resolution, or appointment obtained the majority the Constitution or the applicable rules of procedure require, the vote of a legislator whose tenure is judicially shown to have been conditioned by an instrument void*

*under this article is imputed not to that legislator but to whoever is shown to hold or exercise custody of the instrument, and is excluded from the legislator's own tally for that specific measure. A law, resolution, or appointment that retains the required majority once that vote is excluded remains valid and is not affected by this article. One that does not may be challenged on that specific ground alone, without affecting rights acquired in good faith under any other measure.*

*A judicial declaration under this article produces the vacancy of the affected office under the same terms applicable to any other cause of removal, without retroactive effect on the office-holder's prior acts except as provided in the preceding paragraph.*

*Whoever holds or exercises, directly or through an intermediary, an instrument void under this article is personally liable, jointly and severally and without limitation, for the damages its use causes to the office-holder, to the electorate, or to third parties, without prejudice to any criminal liability that may separately apply. This liability does not extend to the office-holder whose tenure was conditioned by the instrument.*

Unlike Article 29 bis, which attaches a consequence to the beneficiary of a concentration of power, Article 22 bis attaches a consequence to the instrument itself, voiding it regardless of whether it is ever exercised. This difference in design follows directly from Section 2.2: a subtraction-based mechanism does its work through the threat's mere existence, so a rule that waited for the threat to be exercised, as Article 29 bis waits for extraordinary power to be exercised, would leave the mechanism's entire operative period, nineteen years in Rovira's case, outside its reach.

The rule operates in three layers rather than one. The first paragraph voids the instrument itself, for the reason just given. The second paragraph borrows the logic of Article 54, third paragraph (in fine), of Argentina's Ley General de Sociedades 19.550, the doctrine of *inoponibilidad de la personalidad jurídica* under which an act that uses a corporate form to pursue extra-corporate ends is imputed not to the entity but to the controlling party who made it possible: a legislator's vote shown to have been conditioned by a void instrument is imputed, for purposes of recalculating the majority a given measure required, to whoever holds or exercises custody of the instrument rather than to the legislator who cast it. A measure that retains its required majority once the conditioned vote is excluded survives unaffected; one that does not may be challenged on that specific ground alone, without disturbing any other measure the same legislature passed. The third paragraph attaches the vacancy consequence prospectively, without retroactive effect on the office-holder's own prior acts. The fourth paragraph completes the borrowed structure by attaching personal, unlimited liability to whoever holds or exercises the instrument, the same allocation Article 54 in fine makes between a company's controlling party and the company itself, while expressly exempting the conditioned office-holder from that liability.

## ***6.2 Evolutionary stability of the proposed rule***

Applying Section 2.3's framework, Article 22 bis is designed to convert the payoff structure legislators in Rovira's position face. Under the status quo, an individual legislator's expected

cost of unilateral defection is high and independent of what any other legislator does. Under the proposed rule, the instrument generating that cost is void from its inception, which does not by itself change any legislator's psychological willingness to defect but does change what a court, an electoral authority, or a rival legislator's own lawyer can do with the instrument once it becomes public. A patron who continues to rely on an instrument that a court can nullify at the request of any one of the forty legislators subject to it faces a first-mover problem the original mechanism did not have: the marginal legislator who challenges the instrument imposes a public, adjudicated cost on every other legislator's threat, not only their own. This paper does not claim the rule eliminates the underlying incentive to seek this kind of control; it claims a nullity rule invocable unilaterally by any one of the subordinated parties, rather than a rule requiring collective or governmental action, changes the mechanism from one in which no single actor can profitably defect to one in which a single actor's defection benefits the entire subordinated population at once, a structural change consistent with, though not sufficient on its own to guarantee, a shift away from the forced pooling equilibrium described in Section 2.3.

The three-layer structure in Section 6.1 strengthens this incentive further. Under a rule that only voided the instrument, the legislator who challenges it gains the instrument's nullity but bears whatever reputational or political cost comes with admitting the instrument existed. Under the vote-imputation and personal-liability layers, the same challenge does three additional things at once: it exposes the patron, not the challenging legislator, to unlimited personal liability for whatever measures the conditioned vote helped pass; it gives every other legislator subject to the same instrument a concrete, litigable stake in the outcome, since their own votes may also need to be recalculated once one instrument is judicially recognized; and it leaves the challenging legislator's own prior votes untouched, since the liability and the vacancy fall on the patron and on the legislator whose tenure was conditioned only prospectively, not retroactively on votes the challenger cast while still constrained. The first legislator to challenge the instrument therefore converts a private cost, admitting years of compliance, into a public benefit for every other conditioned legislator and a public liability for the patron alone, which is the direction Section 2.3's two-principal analysis predicts a forced pooling equilibrium should move once defection becomes profitable for even one player.

### ***6.3 The two-channel closure problem***

The companion paper's Section 6.5 shows that a tenure-contingent trigger defined by named instrument rather than by substance invites relabeling, and that a substance-based trigger certified by a discretionary adjudicator invites the adjudicator's own reluctance to apply it; closing only one channel leaves the mechanism defeatable through the other. The same two-channel problem applies here. Article 22 bis is drafted to close the first channel by defining its trigger functionally, any instrument that produces the same effect in practice, borrowing explicitly the substance-over-form technique of Argentina's own *principio de la realidad económica* (Ley 11.683, art. 2), which instructs tax authorities to disregard the form a taxpayer

has chosen when that form does not match the transaction's economic substance. The second channel, an adjudicator's reluctance to characterize a private, informal arrangement, one that may never have been reduced to a single written document, as falling within the rule's scope, is harder to close by drafting alone, and this paper does not claim to close it. What the rule can do, consistent with Section 6.1's choice to make it invocable by any affected legislator rather than only by a government authority, is lower the practical threshold for someone with a direct stake to bring the question to an adjudicator in the first place, which the current absence of any comparable rule does not do.

#### ***6.4 Relation to Article 29 bis***

Articles 29 bis and 22 bis are not the same rule applied twice. Article 29 bis protects the constitutional interest Article 29 itself names, that no single office accumulate the state's decisional capacity beyond what the Constitution assigns it, by attaching a cost to the beneficiary of an unlawful accumulation. Article 22 bis protects a different, though related, interest, the one Article 22 names, that the representative function remain answerable to the electorate rather than to a private will, by voiding the instrument that would otherwise make the representative answerable to someone else. A legal system could adopt either without the other: a jurisdiction with a strong reception-side rule but no subtraction-side rule remains vulnerable to the mechanism this paper documents in Misiones; a jurisdiction with a strong subtraction-side rule but no reception-side rule remains vulnerable to the mechanism the companion paper documents in Rome, in Rosas's Buenos Aires, and across the eleven jurisdictions its comparative survey covers. Both rules answer to the same underlying commitment, that the state's decisional capacity remain distributed the way the constitutional text describes it, whichever direction the concentration flows.

The personal-liability layer added to Article 22 bis in Section 6.1 is modeled explicitly on Article 54, third paragraph (in fine), of Ley General de Sociedades 19.550, Argentina's own doctrine for imputing an act to the party who controls a formal structure rather than to the structure itself or to those who acted within it. The borrowing is structural, not merely rhetorical: both rules solve the same underlying problem, separating a formal vehicle from the person actually directing it, and allocating responsibility to the latter.

### **7. Objections and Responses**

*This is simply party discipline, which every organization is entitled to.* Ordinary party discipline operates through consequences a member can anticipate and weigh before acting: expulsion from a bloc, exclusion from future candidacies, loss of committee assignments. Article 22 bis does not reach any of these; it reaches only an instrument that removes the office itself, held by the elected official rather than the party, from that official's own control before the official has cast a single vote the party might object to. The distinction tracks the one Argentine doctrine already draws, discussed in Section 3.1, between disagreement with a party's line,

which a representative is free to express, and losing the office because of it, which the structural reading of Article 22 already treats as incompatible with a representative mandate.

*The rule would be unenforceable against an instrument no one can prove exists.* This paper does not claim otherwise, and Section 6.3 states the limitation directly. What the rule changes is not whether such instruments can be concealed, but what happens to one once it surfaces, whether through litigation, journalism, or a legislator's own decision to make it public, as arguably occurred, informally and without any judicial proceeding, in the Misiones case documented in Section 4.

*Attaching this rule to Article 22 rather than extending Article 29 bis is an unnecessary complication.* Section 6.4 gives the substantive answer: the two rules protect different interests and respond to different mechanisms. A drafting answer follows from the same point. Extending Article 29 bis to reach subtraction would require redefining facultades extraordinarias and la suma del poder público to include their own absence, an office-holder's formal powers remaining unchanged while everyone else's independence disappears, a redefinition this paper considers less transparent, and more vulnerable to the kind of interpretive narrowing that has hollowed out Article 29 itself over 173 years (companion paper, Section 6.4), than a companion rule addressed plainly to the interest Article 22 already names.

## **8. Limitations and Falsifiable Predictions**

This paper's central empirical claim rests on a single, deeply documented case rather than a comparative survey of the kind the companion paper undertakes across eleven jurisdictions. Misiones was selected because it supplied, within the period this paper's research could verify, an unusually well-documented example of the mechanism's full life cycle, design, sixteen years of stable operation, and collapse, rather than because it was drawn from a representative sample of cases in which the mechanism might operate. Whether concentration by subtraction is a general pattern in dominant-party subnational politics, in Argentina or elsewhere, or a configuration specific to Misiones's particular institutional history, is a question this paper does not answer and flags as the first direction for future work; candidate jurisdictions for such a survey would include other Argentine provinces with documented single-party dominance exceeding two decades, a set this paper has not attempted to identify systematically.

Three claims here follow the falsifiable form Section 2 commits to.

*First*, if concentration by subtraction is genuinely a forced pooling equilibrium rather than an evolutionarily stable strategy, comparable arrangements elsewhere should collapse, when they do collapse, in correlated waves triggered by the entry of a rival resource-holder, rather than through gradual, uncorrelated attrition; an arrangement dissolving gradually over many electoral cycles without any comparable rival entry would weigh against the model in Section 2.3.

*Second*, if Article 22 bis's design logic is sound, jurisdictions adopting a functionally equivalent nullity rule should show a measurable increase in publicly documented challenges to predated-resignation instruments, since the rule's mechanism (Section 6.2) works by lowering the cost of individual challenge rather than eliminating the underlying incentive to create such instruments; adoption without any corresponding increase in challenges would suggest the second-channel closure problem identified in Section 6.3 dominates the rule's intended effect.

*Third*, this paper's reading of San Juan's methodology as extendable to Article 22 (Section 5) predicts that a case squarely presenting the blank-resignation mechanism, litigated under Article 5 or Article 22, would be decided along functional rather than strictly textual lines, consistent with the Court's own stated method in *Evolución Liberal v. San Juan*; a decision insisting on textual silence as dispositive would falsify that prediction and would itself be evidence that the structural reading proposed in Section 3.1 is weaker than this paper treats it.

## 9. Conclusion

Article 29 of the Argentine Constitution carries the harshest sanction in the national text and has never once been the basis of a successful conviction, a gap the companion paper traces to a drafting technique built around a named instrument rather than a defined substance. This paper has argued that a second, structurally distinct gap sits beneath the first: even a perfectly drafted, substance-based rule addressed to reception cannot reach a mechanism that involves no reception at all. Misiones province governed itself for nineteen years under exactly such a mechanism, operated by a man who, formally, never held more than a single seat among forty, and the mechanism did not end because any court, any legislature, or any electoral authority applied a rule against it. It ended because a rival with independent resources happened to enter the same market for legislative loyalty. A constitutional design that depends on that kind of accident is not a design at all. Article 22 bis is offered as a first attempt at one that does not.

## References

Constitución de la Nación Argentina (1853, reformada 1994), arts. 1, 5, 22, 29.

Constitución de la Provincia de Misiones, art. 101.

Constitución Española (1978), arts. 23, 67.

CSJN, "Evolución Liberal y otro c/ San Juan, Provincia de s/ acción declarativa de certeza," CSJ 561/2023 (June 1, 2023).

Dawkins, R. (1982). *The Extended Phenotype: The Long Reach of the Gene*. Oxford University Press.

Hull, D.L. (1988). *Science as a Process: An Evolutionary Account of the Social and Conceptual Development of Science*. University of Chicago Press.

Infobae. "Misiones: el oficialismo impulsa una reforma política y La Libertad Avanza lo toma como una victoria propia." May 16, 2026.

Infobae. "Misiones: el gobernador Passalacqua formalizó el quiebre con el caudillo Rovira y ya tiene sello propio para buscar la reelección." July 11, 2026.

Infobae. "Misiones: el gobernador Hugo Passalacqua desmonta la estructura de Carlos Rovira en el Estado y se rodea de leales de cara al 2027." July 23, 2026.

Lakatos, I. (1978). *The Methodology of Scientific Research Programmes*. Cambridge University Press.

La Nación. "Ganó la oposición en Misiones." 2006.

La Nación. "Sorpresa en Misiones: Carlos Rovira, el mandamás provincial, deja un cargo clave tras 24 años al frente del poder." December 6, 2023.

Lerer, I.A. (2026). *The Captured Renewer Problem: Tenure-Contingent Constraints on Extraordinary Executive Powers, from the Roman Dictatorship to Article 29 of the Argentine Constitution* (Version 0.2). Zenodo. <https://doi.org/10.5281/zenodo.21459029>

Ley 11.683 (Argentina, t.o. 1998), art. 2, principio de la realidad económica.

Ley General de Sociedades 19.550 (Argentina, t.o. 1984), art. 54.

Maynard Smith, J. (1982). *Evolution and the Theory of Games*. Cambridge University Press.

Maynard Smith, J., and Price, G.R. (1973). "The Logic of Animal Conflict." *Nature*, 246, 15-18.

Noticias Perfil. "Carlos Rovira: el último señor feudal de Misiones." n.d.

Plan B Misiones. "Sychowski blanqueó rebelión de casi todos los diputados oficialistas con Rovira: 'Se terminó la etapa de la imposición.'" July 30, 2026.

Popper, K.R. (1959). *The Logic of Scientific Discovery*. Routledge.

Tribunal Constitucional de España. Sentencia 5/1983, de 4 de febrero de 1983 (BOE núm. 58, de 9 de marzo de 1983), recurso de amparo 374/1981.

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*AI tools were used as research support during the preparation of this paper: locating sources, extracting information from the existing literature, and reviewing drafts. The thesis, analytical framework, arguments, and conclusions constitute the original contribution of the author. This is an independent research project; all intellectual responsibility for the content rests with the author.*

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## Appendix A: Sourcing Notes

*The STC 5/1983 quotation in Sections 1, 2.1, and 5 was checked directly against the Tribunal Constitucional's own resolution database ([hj.tribunalconstitucional.es](http://hj.tribunalconstitucional.es), Resolución 133) and matches the original word for word; this is the paper's strongest primary-source citation.*

*The Evolución Liberal v. San Juan holding (CSJ 561/2023) is reconstructed from multiple corroborating press accounts quoting the ruling directly (Diario de Cuyo, Perfil, Página/12-affiliated coverage) rather than from the Court's own published text, which this paper's research did not retrieve directly. The vote composition (Rosatti-Maqueda joint, Rosenkrantz concurring, Lorenzetti not voting)*

*is consistent across sources and treated as Verified; the precise wording attributed to the ruling in Section 3.3 should be checked against the CSJN's own official text before being quoted as a direct citation in any citation-final version.*

*The 2006 plebiscite margin (83,786 to 41,244 in Posadas) is sourced to a La Nación report on the result; this paper's research did not independently verify the figures against the Tribunal Electoral de Misiones' own official count, and treats the margin as Review rather than Verified pending that check.*

*The exact years of Hugo Passalacqua's and Oscar Herrera Ahuad's respective terms between Closs's second term and Passalacqua's return in December 2023 could not be established with full confidence from the sources this paper's research consulted, and are accordingly omitted from the text rather than stated as precise ranges. The sequence itself, Closs (two terms), Passalacqua, Herrera Ahuad, Passalacqua again from December 2023, is corroborated across two independent sources.*

*Article 101, inciso 6 of the Constitución de la Provincia de Misiones is sourced to a secondary legal database (Justia Argentina) rather than the province's own official gazette; this paper's research did not fetch the government's own PDF of the provincial constitution directly, and recommends that check before any citation-final use.*

*The exact publication date of the Noticias Perfil profile of Rovira could not be established with confidence from this paper's research; it is cited as n.d. accordingly, and its factual content (the sixteen-year Legislature presidency, the succession of governors) is corroborated by the dated La Nación and Infobae sources cited alongside it.*

*Spanish doctrinal literature on transfuguismo and blank resignations (cited in Section 3.2 as background rather than as a direct source in this paper's reference list) was reviewed in an earlier stage of this research process but is not cited here with full bibliographic precision; a citation-final version should add specific author-year citations to that literature rather than the general reference made in Section 3.2.*

*The vote-imputation and majority-recalculation mechanism added to Article 22 bis in Section 6.1, and the personal-liability layer modeled on Article 54 in fine of Ley 19.550, have no direct precedent in Argentine constitutional or electoral law that this paper's research could locate; both are proposed as an extension of a corporate-law doctrine to a constitutional-design problem, not as an existing rule. The evidentiary problem of proving who holds or exercises custody of a void instrument is the same problem Section 6.3 identifies for the second evasion channel, and this paper does not claim to have solved it.*

## Appendix B: Claim/Evidence Matrix

| Claim                                                                                | Source                                                        | Status   | Risk if wrong |
|--------------------------------------------------------------------------------------|---------------------------------------------------------------|----------|---------------|
| STC 5/1983 quotation, FJ 4                                                           | Tribunal Constitucional resolution database, checked directly | Verified | Low           |
| STC 5/1983 case facts (Andújar, expulsion, vote count, mayor/councilman distinction) | Same, checked directly                                        | Verified | Low           |
| Art. 67.2 CE and Art. 23 CE text                                                     | BOE, checked directly                                         | Verified | Low           |

| Claim                                                                    | Source                                                                                            | Status                          | Risk if wrong                                                                                                |
|--------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|---------------------------------|--------------------------------------------------------------------------------------------------------------|
| Arts. 1, 5, 6, 22, 29, 36 CN text                                        | Official congressional and government sources, checked directly                                   | Verified                        | Low                                                                                                          |
| Evolución Liberal v. San Juan holding and vote composition               | Multiple corroborating press accounts, not the Court's own text                                   | Review                          | Medium if the exact wording attributed to the ruling is quoted as literal in a citation-final version        |
| Rovira governorship 1999-2007, two terms                                 | Multiple corroborating sources (Wikipedia, La Nación, Infobae)                                    | Verified                        | Low                                                                                                          |
| 2006 plebiscite result and margin                                        | La Nación                                                                                         | Review                          | Low, the defeat itself is corroborated across sources; only the precise margin needs the official count      |
| Closs governorship from 2007; Rovira to Legislature presidency same year | Perfil, La Nación                                                                                 | Verified                        | Low                                                                                                          |
| Rovira as Legislature president 2007-2023                                | La Nación (2023), Noticias Perfil                                                                 | Verified                        | Low                                                                                                          |
| Exact governorship years for Passalacqua's first term and Herrera Ahuad  | Not independently confirmed                                                                       | Not verified, omitted from text | N/A, claim not made                                                                                          |
| Passalacqua governor again from December 2023                            | La Nación (2023)                                                                                  | Verified                        | Low                                                                                                          |
| Art. 101, inciso 6, CP Misiones (two-thirds requirement for borrowing)   | Secondary legal database (Justia), not the official gazette                                       | Review                          | Medium, this is the paper's only institutional-mechanism claim not checked against a primary official source |
| May 2026 rebranding and four-candidate succession slate                  | Infobae, May 16, 2026                                                                             | Verified                        | Low                                                                                                          |
| Movimiento por lo que Viene formalized July 11, 2026                     | Infobae, July 11, 2026                                                                            | Verified                        | Low                                                                                                          |
| Passalacqua reorganizing state apparatus, July 2026                      | Infobae, July 23, 2026                                                                            | Verified                        | Low                                                                                                          |
| Szychowski statement and 15-16 of 21 legislator count                    | Plan B Misiones, July 30, 2026, cross-confirmed by a second outlet reproducing the same interview | Verified                        | Low                                                                                                          |
| Ley 11.683, art. 2, principio de la realidad económica                   | Established in companion paper, consistent with standard tax-law doctrine                         | Verified                        | Low                                                                                                          |